PROSECUTOR GENERAL
versus
FLORENCE MARUME
and
REGISTRAR OF DEEDS N.O
and
CITY OF MUTARE
and
ARETHA BEATRICE MARUME N.O
(In her capacity as Executrix Dative in the Estate Late Farai Marume DR MRE 45/22)
and
THE MASTER OF THE HIGH COURT, MUTARE

HIGH COURT OF ZIMBABWE
CHIKOWERO J
HARARE, 1 October 2025 and 14 January 2026

Opposed Application

W Badalane, for the applicant
L Uriri with P Makombe, for the first respondent
No appearance for the second, third, fourth and fifth respondents

CHIKOWERO J:

INTRODUCTION

[1] This is an application for a civil forfeiture order made in terms of SS 79and 80 of the Money Laundering and Proceeds of Crime Act, [*Chapter 9:24*) ("the Act").

The Facts

[2] The applicant is the Prosecutor General.

[3] The first, second, third, fourth and fifth respondents are a female adult holding the rank of Assistant Commissioner in the Zimbabwe Republic Police, the Registrar of Deeds, an urban local authority constituted in terms of the laws of Zimbabwe, the Executrix Dative in the Estate Late Farai Marume and the Master of the High Court respectively.

[4] Farai Marume, a War Veteran, businessman and Warrant Officer Class 2 in the Zimbabwe National Army, was married to the first respondent in terms of the Marriage Act [*Chapter 5:11*]. The marriage was solemnized at Mutare on 12 December 1999. He died on 8 August 2021 at Mutare aged sixty years old. He was survived by the first respondent and three children namely Melody Muchanyara Marume (born 24 October 1983), Ashel Masimba Marume (born 21 June 1987) and Memory Tinotenda Marume (born 22 March 1993).

[5] On 15 May 2023 the applicant filed an application for a civil forfeiture order. The properties targeted are a certain piece of land situate in the District of Umtali called Stand 7083 Mutare Township of Umtali Township Lands measuring 1.183 square metres held under Deed of Transfer Registered Number 1494/98 dated 24 February 1998 in favour of Farai Marume; stand 232 Fourth Street Umtali Township measuring 595 square metres which was purchased by Farai Marume from the City of Mutare, for US$22 000, in terms of a Memorandum of Agreement of Sale entered into at Mutare on 12 December 2014 as well as stand 11382 Mutare Township measuring 2 200 square metres which was purchased by the first respondent from the City of Mutare for US$7 000 in terms of a Memorandum of Agreement of Sale entered into at Mutare on 26 November 2013.

[6] The basis of the application for a civil forfeiture order is set out in paragraphs 12, 13 and 14 of the Founding Affidavit of Audrey Chogumaira, a Principal Law Officer attached to the Asset forfeiture Unit of the National Prosecuting Authority. She says:

> "12. The 1st Respondent was under investigations by Zimbabwe Anti-Corruption Commission (ZACC) for the offence of money laundering as defined in section 8(1)(a) of the
>
> Money Laundering and Proceeds of Crime Act. ZACC had received reliable information to the effect that the first respondent was involved in unlawful dealing in diamonds during the time she was the Assistant Commissioner in Mutare. This is clear from paragraph 9 of Victor Masimba's Affidavit, a copy of which is attached hereto as Annexure "A".
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> 13. The ZACC carried out further investigations which established that for purposes of concealing or disguising the illicit origin of the funds (from unlawful dealing in diamonds) the 1st Respondent acquired or developed the following assets……

> 14.....
>
> 15. It was also established that 1st Respondent was employed as a constable in 1994 and she rose through the ranks and became Assistant Commissioner in 2020, a position she currently holds. The investigations compiled a case file which was brought to the applicant's offices. Applicant was convinced that the 1st respondent was involved in money laundering arising from illegal diamond dealing and some other unlawful activities" (emphasis added).

[7] Victor Masimba is employed by the Zimbabwe Anti-Corruption Commission as the Acting Manager in the Asset Forfeiture and Recovery Unit. He conducted financial investigations into the first respondent's affairs. He deposed to the supporting affidavit alluded to in paragraph 12 of the founding affidavit. Paragraph 9 of his supporting affidavit reads:-

> "9. Allegations are that the Respondent was involved in illegal diamond dealing and associated with illegal diamond buyers in Mutare when she was the Chief Superintendent and DISPOL Mutare. There is no criminal record to that effect."

[8] The first respondent opposed the application. Among other things, she makes the point that the application fails at the first hurdle because there is no iota of evidence that the first respondent was involved in some kind of criminal activity hence the applicant had failed to prove that the properties were proceeds from some conduct constituting or associated with a serious offence.

> A certain piece of land situated in the District of Umtali called Stand 7083 Mutare Township Lands measuring 1 183 square metres held under Deed of Transfer Registered Number 1494/98 dated 24 February 1998 in favour of Farai Marume.

[9] This property was acquired by Farai Marume from the City of Mutare in February 1998. The purchase price was US11 880. It was paid by the said purchaser.

[10] Thereafter, title was registered in favour of Farai Marume on 24 February 1998.

[11] S 79 (2) of the Act states:-

> "Orders for civil forfeiture may not be granted with respect to property acquired or used before this Act came into force".

[12] The Act came into force on 28 June 2013.

[13] In *Prosecutor General* v *Chidemo and Others* HH416/22 this Court found that S 79(2) of the Act does not have retrospective effect.

[14] The finding was upheld on appeal in *Prosecutor General* v *Chiba* SC 19/24 where the court said at paragraph 124 :

> "[124] In terms of S 79(2) a court cannot grant a civil forfeiture order in respect of property which was acquired or used before the Act came into effect on 28 June 2013. This simply means the law which provides for the civil forfeiture of the tainted property does not have retrospective effect".

At paragraph 128 the Court concluded:

> "[128] It is therefore clear that the use of the words 'may not' in S 79(2) being in the negative means Courts cannot grant forfeiture orders in respect of tainted property acquired or used before the Act came into force on 28 June 2013".

[15] Since the property under discussion was acquired in February 1998 (before the Act came into force on 28 June 2013) it follows that this court cannot grant an order forfeiting that property. That really is the end of the matter.

Stand 232 Fourth Street Umtali Township measuring 595 square metres and Stand 11 382 Mutare Township measuring 2 200 square metres.

[16] In *Prosecutor General* v *Chiba (supra*) the Court said at paragraph 121:

> "[131] Section 80(2) provides that the standard of proof required to obtain a civil forfeiture order shall be on a balance of probabilities while S 80(3) provides for how the balance of probabilities can be satisfied".

[17] The court repeated these sentiments in *Matinyarare* v *The Prosecutor General* N.O and Ors SC 115/24 at p 13 and continued: -

> "The burden of proof in civil cases has been set out in a number of cases".

It referred to its own decision in *Madefit Investments (Pvt) Ltd* v *Prosecutor General* SC 139/21 where it said at p 12:

> "It is also pertinent to note that the burden of proof in all civil cases is on a balance of probabilities. The concept of proof on a balance of probabilities

was enunciated in *British American Tobacco Zimbabwe* v Chibaya *SC* 30/19 Wherein the Court quoted with approval the case of *Miller* v Minister *of Pensions* [1947] 2 All ER 372, at p 374 and explained as follows:

"The concept must carry a reasonable degree of probability but not so high as is required in criminal cases. If the evidence is such that the tribunal can say, 'we think it more probable than not' the burden is discharged, but if the probabilities are equal it is not".

[18] S 80(2) of the Act reads:

"The Court, on an application by the Prosecutor General, shall grant a civil forfeiture order in respect of property within the jurisdiction of Zimbabwe where the Court finds, on a balance of probabilities, that such property is tainted property……"

[19] S 80 of the Act says in Subsection 3:

"(3) In order to satisfy the Court under subsection (2) -

(a) That property is proceeds of a serious crime or a terrorist act, it is not necessary to show that the property was derived directly or indirectly, in whole or in part, from a particular serious offence or terrorist act, or that any person has been charged in relation to such an offence or act; only that it is proceeds from some conduct constituting or associated with the serious offence or terrorist act".

[20] This dovetails with S 8(6) of the Act. It provides:

"(6) In order to prove that property is the proceeds of crime, it is not necessary for there to be a conviction for the offence that has generated the proceeds or for there to be a showing of a specific offence rather than some kind of criminal activity or that a particular person committed the offence"
(all underlining is mine)

See *Prosecutor General* v *Sangarwe and others* HH 120/21 where MANGOTA J said at p 7:

"It follows, from the foregoing, that for me to order forfeiture of the four motor vehicles the applicant must allege and prove, on a balance of probabilities, that the cars were obtained through criminal conduct. He must satisfy me that they are proceeds of a crime and/or that their coming into existence is associated with, or connected to the commission of crime."

See also *Prosecutor General* v *Mpanza and Anor* HH 58/24

[21] Now, the portions of the founding papers reproduced at paragraphs 6 and 7 of this judgment are not evidence of some conduct, by the first respondent, constituting or associated with some serious offence. They are not evidence that the first respondent was involved in some

kind of criminal activity. Ms Badalane properly conceded that the applicant did not place any evidence before this court to prove that the first respondent was involved in some conduct constituting or associated with some serious offence. In other words, the concession was that there is no evidence before me that the first respondent was involved in some kind of criminal activity at the material time. The application was not premised on evidence but on bare and vague allegations that the first respondent laundered proceeds of her dealings in illegal dealing in diamonds by acquiring the two properties under discussion.

[22] The mere making of allegations does not assist the applicant in proving its case on a balance of probabilities. What a Court assesses in deciding whether a civil case has been proved on a balance of probabilities is evidence.

[23] I agree with Mr Uriri that the concession made by Ms Badalane, already referred to in this judgment, is fatal to the application.

[24] The concession does not trigger a determination on whether the two properties are tainted. Indeed, it is not necessary to relate to the first respondent's evidence in rebuttal of the allegations that the two properties are tainted.

Costs

[25] The application should never have been made. At the very least, in view of the sound concession made at the hearing, Ms Badalane should have moved for the withdrawal of the application. In the circumstances, there is no reason why costs should not follow the result.

Order

[26] **IT IS ORDERED THAT**:

1. The application is dismissed.
2. The applicant shall pay the first respondent's costs of suit.

CHIKOWERO J:.....

The National Prosecuting Authority, applicant's legal practitioners
Makombe and Associates, first respondent's legal practitioners